Form No: HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

Crl. Misc. No.3505-B of 2025.

Mian Haseeb Madni. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
	07.04.2025.	Mian Muhammad Naeem, Advocate for the petitioner. M/s Nisar Akram Bhatti and Sajjad Mehmood Bhatti, Advocates for the complainant. Mr. Hassan Farooq, AD, FIA (Cyber), Gujranwala with record. The petitioner (Mian Haseeb Madni), being arrayed as an accused in case F.I.R. No.124/2024, dated 12.12.2024, for the offences under Section 20-24 of the Prevention of Electronic Crime Act, 2016 read with Section 376(A), 509, 109, 153 of PPC, registered with Police Station FIA/Cyber Crime Circle, Gujranwala seeks his post arrest bail, after the same was refused by the court of learned Additional Sessions Judge, Gujranwala vide order dated 13.01.2025. 2. Precisely stated prosecution case as set up in the F.I.R. was that Muhammad Sajid (complainant) moved an application to F.I.A. with the avernments that he (Moharrar HC/595) alongwith Iftikhar Ahmad C/01 and Bilal-Naib Moharar HC/3188, were present at Police Line Wazirabad that certain videos were sent from Cell No.0322-8090500 to the Cell Phone No.0300-6459575 of complainant, which he displayed in the presence of both the above witnesses and heard. It was also shared in the different groups on social media. On 29.11.2024 at 07:30 P.M. one Muhammad Haseeb Madni, You-tuber (petitioner) uploaded a video

through Whatsapp ‘Janbaz Group’ in the shape of a news to the effect that Mirza Sajid, Moharrar Police Line (complainant) was seen while committing Zina with a lady constable(m), presently posted at Khidmat Markiz Wazirabad and one Asim Pannu was guarding over the above activity, who was front-man of Mirza Sajid-HC (complainant). You-Tuber further stated that where modesty of the police officials was not safe then what to speak about the self-respect/modesty of general public. He/Youtuber was further saying that he was making an appeal to the police high-ups to take serious action against the concerneds. Complainant brought the above matter into the knowledge of high-ups orally. Name of secrete informer was transpired as Anwar Fouji alias Commando during the inquiry. Allegations leveled against the complainant found to be false. During the inquiry certain persons namely Muhammad Haseeb Madni-Youtuber/V-loger and Anwar Fouji alias Commando and Hassan Shah, Traffic Warden were found to be guilty. They damaged the reputation of complainant.

3. Bail was sought mainly on the grounds that petitioner was not the rear culprit; co-accused were allowed bail through orders dated 27.12.2024 and 12.12.2024 by the court of learned Additional Sessions Judge; case of the petitioner was at par with the case of above co-accused, as such principle of consistency was fully applicable; offences under Section 20/24 of PECA, 2016 were carrying the penalty of imprisonment only upto three years and were bailable and compoundable, vide Section 47 thereof; person of the petitioner was no more required; in such like cases rule was bail not jail.

4. Conversely, the learned counsel for complainant assisted by learned Prosecutor General

opposed present petition vehemently and rigorously on variety of the grounds. He added that petitioner played serious mischief; he subjected to complainant the public humiliation and sever mental shock, as such was not eligible to be released on bail despite of the fact that offences were not attracting embargo contained under Section 497 of Cr.P.C.

5. Arguments heard. File perused.

6. It appears from the record that petitioner was named in the F.I.R. with specific and vital role of sharing and making viral video news clip on social media with the assertions that Mirza Sajid-Moharrar (complainant) was found committing '*Zina*' with a lady constable, posted there. After going through the above message, complainant brought the message into the knowledge of high-ups of police department and during the inquiry conducted by Superintendent of Police, Gujranwala, the allegations leveled against the complainant through said whats-app message were found to be false and baseless and petitioner and his co-accused were found to be guilty for the commission of above blunder, which badly effected the reputation not only of complainant but also that of police department as a whole. They under went sever mental and spiritual shock/torture.

7. Cell phone recovered from petitioner was containing the contents of above said V-log video and during the investigation it was also found that he shared the video to other corners. Incriminating material floating on the surface fully connected the petitioner with the crime. His prima facie involvement in the offence alleged against him could not be dislodged. There was nothing to suggest that the case was requiring further inquiry.

8. In the case in hand, petitioner has gone to grotesque lengths to humiliate the complainant online, which may cause a detrimental effect on him. In such like cases a victim may go even upto suicidal attempts due to shame and shock.

9. The mere fact that the offences were not falling within embargo contained in Section 497 of Cr.P.C. does not mean that the offences have become bailable, as such concession of the bail could not be claimed as a right and bail could be refused where the offences are heinous in nature and are affecting the whole of the society.

10. The Honouorable superior Courts were pleased to decline the bail to the accused even in cases not hit by prohibitory clause, where exceptional circumstances of the case so require. If any reference in this regard is needed, that can be had from '*Imran Khan v. The State*' (**2020 P.Cr.L.J 1652**), wherein the bail was refused in similar circumstances. I am further fortified by '*Shameel Ahmad v. The State*' (**2009 SCMR 174**), '*Sohail Younas v. The State and others*' (**2015 P.Cr.L.J 563**).

11. Such like incidents cause depression, frustration and death anxiety to its victims. It is duty of all the concerned organs of the state to come forward and gear up their sources in order to meet such like offences with an iron hand. If such like matters are dealt with in lighter mode, whole of the country would be unsafe at the hands of such like mafia.

12. Offences were shocking to public morality. Contents of the F.I.R. and all the other circumstances appearing on the surface, presented a dreadful picture, which do not permit me to exercise my discretion in favour of the petitioner.

13. For the reasons recorded above, the present petition has no force and is **dismissed**.

14. Needless to mention that any observation made in the above order are tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

Approved for reporting.

JUDGE

Shahzad Ahmad Nasir